

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

KEVIN SINGH,

Plaintiffs,

-against-

SUMMONS

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER PAUL CHIERICO, TAX REG.
#936344, POLICE OFFICER CATHY
STONE, TAX REG. #924528 and
police officers whose names are yet
unknown,

INDEX NO.:

Defendants.

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if, the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: May 8, 2015

Defendants' address: 1 Police Plaza
New York, NY

ELLIOT H. FULD

930 Grand Concourse-Suite 1G
Bronx, NY 10451
(718) 410-4111

Notice: The object of this action is one for monetary damages due to false arrest, false imprisonment, malicious prosecution and federal civil rights violations.

Upon your failure to appear, judgment will be taken against you by default for the sum \$2,000,000.00 with interest from July 4, 2014 and the costs and disbursements of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

KEVIN SINGH,

Plaintiffs,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NEW YORK
CITY POLICE DEPARTMENT, POLICE
OFFICER PAUL CHIERICO, TAX REG.
#936344, POLICE OFFICER CATHY
STONEY, TAX REG. #924528 and
police officers whose names are yet
unknown,

INDEX NO.:

Defendants.

KEVIN SINGH, by his attorney, Elliot H. Fuld, complains of the defendants and
allege, upon information and belief as follows:

1. KEVIN SINGH was, at the times of the incident described in this Complaint, a resident
of the City and State of New York, County of Queens.
2. POLICE OFFICER PAUL CHIERICO, TAX REG. #936344, POLICE OFFICER
CATHY STONEY, TAX REG. #924528 and police officers whose names are yet
unknown were and at all times stated herein and upon information and belief, is police
officer with the New York City Police Department with regards to the incidents described
herein.
3. POLICE OFFICER PAUL CHIERICO, TAX REG. #936344, POLICE OFFICER

CATHY STONEY, TAX REG. #924528 and police officers whose names are yet unknown were acting within the scope of their employment with the New York City Police Department with regards to the incidents described herein.

4. That at all times stated herein, POLICE OFFICER PAUL CHIERICO, TAX REG. #936344, POLICE OFFICER CATHY STONEY, TAX REG. #924528 and police officers whose names are yet unknown, as employees of the New York City Police Department, were acting as agents, servants and/or employees of THE CITY OF NEW YORK.

5. THE CITY OF NEW YORK at all times herein mentioned, was and still is a municipal corporation, duly organized and existing in accordance with the laws of the State of New York.

AS AND FOR A FIRST CAUSE OF ACTION

6. On or about July 4, 2014 going into July 5, 2014, police officers, without justification, cause or provocation, forcibly seized and detained the Plaintiff herein in the area of 128th Avenue and 235th Street in Queens County.

7. After detaining the Plaintiff, police officers arrested the Plaintiff. When Plaintiff objected to the false arrest, police officers beat KEVIN SINGH by hitting and kicking Plaintiff over parts of his body including his mouth and face, and maced Plaintiff, all of which caused Plaintiff to suffer physical trauma and seek medical attention.

8. Police officers accused Plaintiff of Disorderly conduct and resisting arrest despite the fact that there had been no such conduct on Plaintiff's part and no conduct justifying an arrest. Hours later, at the 105th Precinct, officers claimed they found Plaintiff in possession of a marijuana cigarette and charged Plaintiff with a violation of marijuana possession.

9. At the time of the arrest and detention those police officers who were present were aware or should have been aware that Plaintiff did not commit those crimes.

10. The arrest and detention of the Plaintiff by those officers and the filing of criminal charges was without probable cause and without basis in law or in fact.

11. As of the filing of this Complaint, Plaintiff has had to appear in court for the criminal charges approximately seven (7) times and on at least four occasions the District Attorney informed the Court that he was not ready for trial because the Defendant officers were not available.

12. On or about July 16, 2014, Plaintiff, by counsel, served upon the Comptroller of the City of New York, Notices of Claim as required by the General Municipal Law and the City has held the statutory 50-h hearing on August 7, 2014.

13. That more than thirty (30) days have elapsed since the service of that Claim and the

adjustment or payment thereof has been neglected or refused.

14. That this action is being commenced within one year and ninety days after the happening of the event upon which the claim is based, which cause of action accrued upon the arrest of March 5, 2011, imprisonment of Plaintiff that same day and the prosecution which is still continuing.

15. As a result of the false arrest of Plaintiff by defendants, Plaintiffs demands judgment against the Defendants and was damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A SECOND CAUSE OF ACTION

16. Plaintiffs repeat all the allegations contained in paragraphs "1" through "15" inclusive as though more fully set forth herein.

17. As a result of Defendants' actions, Plaintiff was falsely imprisoned.

18. That at the time of Plaintiffs' imprisonment, Defendants, their agents, servants and/or employees knew or should have known that Plaintiffs should not have been incarcerated.

19. That the Defendants, their agents, servants and/or employees failed, refused or

neglected to undertake any measures which could have resulted in Plaintiffs' release.

20. That as a result of Defendants' action, Plaintiffs was compelled to, *inter alia*, lose educational opportunities and suffer embarrassment and humiliation.

21. In view of the foregoing, Plaintiff has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiffs repeat all the allegations contained in paragraphs "1" through "21" inclusive as though more fully set forth herein.

23. After Plaintiff's false arrest on July 4-5, 2014 and the malicious prosecution which followed, Plaintiff was required to make several appearances in Criminal Court.

24. That during the pendency of those charges, the Defendants were well aware that it did not appear that Plaintiffs had committed any crime.

25. Irrespective of that, the Defendants continued to pursue criminal charges against Plaintiffs, seeking to have the Plaintiffs plead guilty to a lesser charge.

26. Plaintiff has refused to plead guilty.

27. The Defendants' prosecution of Plaintiffs were conducted with malice or with such reckless disregard for the true set of facts underlying the "complaint" that said reckless disregard constituted malice.

28. In view of the foregoing, Plaintiffs has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

AS AND FOR A FOURTH CAUSE OF ACTION

29. Plaintiffs repeat all the allegations contained in paragraphs "1" through "28" inclusive as though more fully set forth herein.

30. The Defendants, their agents, servants and/or employees, were acting "under color of state law" as defined in 42 U.S.C. 1983 et seq. in committing the acts alleged herein.

31. In performing that acts as aforesaid, the Defendants deprived Plaintiffs of their civil and constitutional rights as defined by 42 U.S.C. 1983 et seq and the law interpreting that section.

32. The Defendants have in the past made it a practice and policy to harass, detain and seize young Hispanic and African-American males who act in a law abiding manner solely because of their race and/or ethnicity.

33. The Defendants have in the past made it a practice to stop, detain and harass young Hispanic and African-American males without any justification or just cause.
34. The Defendants perform these unlawful seizures to provoke citizens such as Plaintiff and other similarly situated young male Hispanics and African Americans into protest over such unlawful seizures.
33. At the time of that unlawful and unjustified detention, the Defendants then aggravate the situation by claiming that citizens such as Plaintiff and other similarly situated young male Hispanics and African Americans are acting “disorderly” or “obstructing governmental administration” or “resisting arrest” when in fact these citizens are simply exercising their constitutional rights by objecting to being unlawfully seized and manhandled by Defendants.
34. That at the time of the unlawful false arrest, false imprisonment and malicious prosecution herein, Defendants had already made it a practice and continue to make it a practice and policy of their daily activities to randomly harass, stop, detain and seize young Hispanic and African-American males on the street and in their own apartment buildings.
35. That said discriminatory and race based actions by the Defendants do not occur in higher income areas populated and frequented by fewer young Hispanics and

African American males.

32. As a result of the foregoing, the Plaintiff has been damaged in the amount of Two Million (\$2,000,000.00) Dollars.

WHEREFORE, Plaintiffs demand of the Defendants as follows:

- a. On the First Cause of Action, the sum of \$2,000,000.00; and
- b. On the Second Cause of Action, the sum of \$2,000,000.00; and
- c. On the Third Cause of Action, the sum of \$2,000,000.00; and
- d. On the Fourth Cause of Action, the sum of \$2,000,000.00, as well as attorneys' fees because of the civil rights violations; and

For punitive damages in the amount of \$1,000,000.00.

Dated: May 8, 2015

Elliot H. Fuld
Attorney for Plaintiffs
930 Grand Concourse-Suite 1G
Bronx, New York 10451
(718) 410-4111

STATE OF NEW YORK
COUNTY OF THE BRONX: ss

ELLIOT H. FULD, an attorney licensed to practice law in the Courts of the State of New York states under then penalties of perjury as follows:

I am the attorney for the Plaintiff herein, and I state and verify that I have read the attached Verified Complaint and that the statements contained in that Complaint are true or are, upon information and belief, accurate. I make this Verification based upon statements from the Plaintiff and an examination of pertinent documents and because Plaintiff does not reside in the County wherein I maintain my office.

ELLIOT H. FULD

Dated: May 8, 2015

ELLIOT H. FULD